Grant Smith Ellis Court Log

USA v. Matthew Farwell - October 22, 2026

Reporting by Grant Smith Ellis (@GrantSmithEllis)

About this report: This document reconstructs Grant Smith Ellis's contemporaneous courtroom reporting from his October 22, 2026 posts on X and is reproduced here in support of public access to the proceedings. Every reasonable effort is made to ensure accuracy and completeness; however, this document should be understood as neither an official court transcript nor a perfect reproduction of Grant's original reporting.

Pre-court reporting and morning setup

5:08:24 AM ET | Status 2113195756538695940

Good morning from a beautiful, and comfortable, Boston.

Today is the day where Jayson Pickard, the father of Sandra Birchmore's unborn baby, takes the stand in the Matthew Farwell trial under a compelled grant of federal immunity.

I am ready for this.

Are you?

Open original post on X

7:44:17 AM ET | Status 2113234988145532978

Morning Brief; Immunity On The Table As Jason Pickard Forced To Take DOJ's Birchmore/Farwell Hotseat

Also, Towel News captured exclusive footage of Farwell's arrival at Moakley Courthouse mid-report.

Today is a big day, indeed.

God bless Sandra Birchmore and her unborn baby. https://t.co/tjOvfR5SU2

Open original post on X

8:25:56 AM ET | Status 2113245470042792353

Good morning from inside Boston's Moakley federal courthouse, where I'm here for today's expected bombshell testimony from US Army Recruiter Jason Pickard (the father of Sandra Birchmore's unborn baby) in the Matthew Farwell trial under a compelled grant of immunity.

Live below.

Open original post on X

8:46:14 AM ET | Status 2113250578851860803

Okay, I am seated and waiting for the court to begin.

Today is a big day.

We, as a media pool, have plans.

Big plans!

Open original post on X

Preliminary rulings and exhibit issues

8:47:32 AM ET | Status 2113250904153440715

We begin.

Open original post on X

8:49:14 AM ET | Status 2113251330835767477

"There was an additional motion from the defense, and one contemporaneous instruction I wanted to discuss. Counsel, starting with the exhibits. From the government's side there were a series of texts with Ms. Green, this is 328 to 334, 336-338, 228. I'm not sure the defense has any specific objections beyond preserving prior objections. I expect they will come in for the reasons articulated before. An there is an illustrative aide that I expect you'll use with Ms. Duval. I looked at both the defense and the DOJ version. I'll mention to the jury this is just for illustration. The evidence is the testimony."

Open original post on X

8:50:21 AM ET | Status 2113251611313078752

"In terms of the other exhibits, identified by the defense, let's start with the two for Ms. Duvall. One was a photo of Ms. Birchmore's clothes?"

"It is your honor. We think it is an illustrative witness now, but we will tie it up later with the OCME."

"Also her report?"

"It's there as a guided refresh. Not for evidence."

Open original post on X

8:52:24 AM ET | Status 2113252129011802179

"The other exhibits, 755, 756 745-a, 684-d, I believe these are defense exhibits for Mr. Pickard. No government objection. As to 705-1 and 705-2, photos of Mr. Farwell with his family although I'm assuming it is about the mask if foundation is laid there is no objection?"

"The government feels it is only admissible if a witness can testify to when and where the photos were taken?"

"Proffer counsel?"

"The photos speak for themselves. It was during covid. They are wearing masks so it is self explanatory. The witness can say Matt Farwell and the witness were friends."

"Doesn't it matter that the photos are from during COVID?"

"Yes, your honor, Mr. Loper can testify to the metadata. One was taken prior to Sandra Birchmore's death, one was after, all three are from 2020 and 2021."

Open original post on X

8:52:56 AM ET | Status 2113252264215273698

"Your honor, if the court wouldn't mind us waiting until Mr. Loper, I think the jury can see the photos and see it is the defendant. We can wait until Mr. Loper."

"Any objection today to that counsel?"

"Not today."

Open original post on X

9:05:57 AM ET | Status 2113255536837685710

"Regarding the other exhibits with objections, those are all related to the motion from the defense. I am focused on 754, 684-c, 684-b and 648-a, I think that is the grouping of the texts with Mr. Pickard that relate to details of his sexual conduct...um...uh...with Ms. Birchmore. And I did receive, I don't know about the docket number just yet, the motion for reconsideration. Counsel?"

"Yes. Your honor."

"I also re-read my ruling, Docket 270."

"Your honor, the motion to reconsider is based primarily on that your honor has ruled on the motion in limine, trial testimony has come out that is relevant, as to impeachment of Mr. Pickard, as to the denails of the extent of his sexual relationship with ms. Birchmore but also it's relevant as to how Ms. Birchmore talked about her relationshiop with the defendant (Farwell's lawyers just called him the defendant), in a 2020 text excahnge Ms. Birchmore told Mr. Pickard that he was good at throwing Mr. Mirchmore around whereas Mr. Birchmore was more timid, and sensual, and afraid to be as rough with her. That is relevant to the one-sided framing of the relationship between ms. Birchmore and Mr. Farwell. It's 601 evidence. It's not unduly prejudical. This jury has already heard so much about Sandra Birchmore's sexual life and none of this evidence is meant to cast dispersion as to her proclivities or her promiscuity. That is not it alt all. This is about the defendant having the right to set the record straight as to this very declarant. And the fact that is outside the scope of her death is not the only question. It's the extent that the defendant played a role in her sexual proclivities, and that was the subject of the court's pre-0trial ruling, and if the defendant isint allowed to present this evidence the jury only gets a on sided narrative..."

"Even where Dr. Rocchio's testimony was focused on child sexual conduct?"

"Your honor, she said child and adolescents.."

"I should say sexual abuse, but go on counsel..."

"She also said under 18 is what she was referring to, but to the extent the government will argue the defendant's initial sexual conduct with the complainant is what led her to engage in these other sexual behaviors is the issue here. And I understand your honor felt the abrasion on Ms. Birchmore's chest was

somehoe irrelevant to the 412 motion, but we have text between Sandra and Mr. Pickard where she says she used ropes or straps to negage in autroertoic behavior..."

"It's not that I felt. Having read through all of the reports about the abrasion being perimortem, there is not a factual basis to suggest anything in that regard."

"Your honor I disagree, Dr. Capo-Martinez will testify she changed her opinion on manner of death because of cross over in the evidence. There is a possibility that Sandra Birchmore was engaging in autoerotic asphixia and therefore the strap around her neck is highly relevant and that is behavior with herself and thaqt conduct may not fall within 412 because she is engaging in that with her herself. She tells another paramore that she hurt herself while she was tying herself up. Whatever impact it has on the decent under 412, which we think it does not, that is overcome by the defendant's right to a fair trial."

"Okay, well we have all of our jurors, but I'll hear the government."

"Your honor, perimortem is not 6 weeks before death, and if any defense experts will say that they should be excluded on Daubert grounds. There is not evidence Ms. Birchmore engaged in any of this sexual behavior after she became mpregnant. That injury to her chest was not caused in the last six weeks of her life."

"Counsel what do you say about this...is the witness here...yes...I'll have Ms. Cook go get the jury...walk slowly.""

"I'd ask the defense to correct their motion. There was no evidence of this in 2021. I assume that was a typo."

"Counsel, focus on Dr. Rocchio."

"Your honor, I understand the defense tried to make a point about age 16 vs age 18, but what her testimony was relevant to was what if any impact child sexual abuse would have, and how that can happen. The evidence of choking is relevant for one purpose and one purpose only, to explain why it is that Ms. bBrchmore be strangled to death and not have the defedan'ts DNA under her fingernails. It's relevant as to why she wouldn't have reached up, in the 8 seconds it would tatake her to lose concijousness, because the defendant and Ms. Birchmore constantly engaged in choking. The government showed through agent Kelsch that the choking was consensual. The jury has not bveen mislead to imply that was DV, except for the december 29th incident..."

"And what about this auto..Ms. Birchmore engaging in that?"

"Those texts are from march of 2020, and thnis is the first time..."
"UI understand it's the first time I heard the theory. Counsel I'm in the same ,place, I'll give it some thought. We have a few witnesses before Mr. Pickard."

"These text messages give myself and Ms. Stevens a good faith basis to inquire if this continued until the time of her death. it's worth pointing out, Ms. Birchmore had a bondage rope under her bed at the time her apartment was search. For the government to say this only went on in 2020 is wrong. She had BDSM material sunder her bed, ordered them and talked to Mr. Pickard about ordering them. She talked with Mr. Pickard. He asked her if he could choke her until she blacked out...that's all relevant and what is particularly relevant...":

"Okay, counsel, I understand.

"Jurors entering!'

Open original post on X

Daniel Barber - continued cross, redirect, and recross

9:06:49 AM ET | Status 2113255756783034725

Barber retakes the stand on cross.

"You work with the state police CPAC unit often?"

"Yes."

"And you have their cellphone numbers?"

"Yes."

"Why?"

"It's easier to call them that way."

"Do you have John Fanning and Matt Dunne's cellphone number in your phone?"

"Yes."

Open original post on X

9:07:25 AM ET | Status 2113255909250195491

"You said you and Matthew Farwell were good friends?"

"Yes."

"And you socialized with Mr. Farwell regularly?"

"Yes."

"Did you know his wife?"

"Only in passing."

"Did you ever socialize with Trooper Dunne or Fanning?"

"I don't recall that at all."

Open original post on X

9:08:08 AM ET | Status 2113256087914696729

"You knew Sandra Birchmore but you weren't friends with her?"

"Yes."

"You ran into her Stoughton District Court and it was uncomfortable in 2016?"

"Yes."

"She came up to you and started talking to you as if she knew you? She said your first name?"

"Yes."

"Did you find it strange?"

"Yes."

Open original post on X

9:08:39 AM ET | Status 2113256218114613650

"What did you talk about?"

"She was making small talk. She said something to the effect of introducing herself. She talked about the explorer's program. She said why she was at Stoughton District Court that day."

Open original post on X

9:09:18 AM ET | Status 2113256382690697658

"Did Matt Farwell and his wife had children?"

"Yes."

"Did they ever hire Sandra Birchmore as a babysitter?"

"That was a rumor that had circulated. I don't know if it true."

Open original post on X

9:10:07 AM ET | Status 2113256586932363620

"Did Sandra Birchmore ever meet Matthew Farwell's wife?"

"I have no knowledge of that?"

"Do you have any memory of Matthew Farwell yelling at James Fitton on Jan 20, 2021?"

"I have no memory of that."

Open original post on X

9:10:40 AM ET | Status 2113256726161932526

"Does a 4-midnight shift at 11:45PM?"

"Not really, but if the next shift comes in early, which happens often, then, yes, we could leave early."

Open original post on X

9:12:02 AM ET | Status 2113257069973233868

"You said that it was unusual for Matthew Farwell to text you and ask what was going on when he wasn't on duty?"

"I wouldn't say it that generally. That specific text message was unusual to me."

Yikes.

Open original post on X

9:13:07 AM ET | Status 2113257343286698101

"This was during covid and his wife had just given birth?"

"Yes."

"He was saying he is stir crazy?"

"That is a reasonable inference."

"He did other things for the department that included IT questions?"

"Yes."

"Was Roger Hardy the person who would often reach out to Matt for help with such issues? Radio and tech issues?"

"A number of people did, but certainly Roger Hardy."

"May I have one moment, your honor?"

"You may."

Open original post on X

9:13:44 AM ET | Status 2113257496563294362

"Were detectives allowed to run errands during your meal breaks?"

"Yes."

"Were there restrictions?"

"Not by policy."

"Nothing further."

"Redirect."

Open original post on X

9:14:43 AM ET | Status 2113257746606813578

"You were a detective in August of 2019?"

"Sometime at the end of 2019, I don't remember if it was August."

"Were you a police officer in August of 2019?"

"Yes."

"Did the defendant text you hours after the birth of his second child asking what was going on at the station?"

"No."

""Were you a police officer in 2015?"

"Yes."

"Did the defendant text you hours after the birth of his first child asking what was going on at the station?"

"No."

Open original post on X

9:15:47 AM ET | Status 2113258014136205532

"You often left the detectives office while working?"

"Yes."

"If you were out of the office when Matthew Farwell told James Fitton, "don't fucking talk about..."

"Objection."

"Sustained."

"If you were out of the office when Matthew Farwell told James Fitton, something about a phone call that day, would you have heard that statement?"

"No."

"Nothing further."

Open original post on X

9:16:39 AM ET | Status 2113258229622771928

"Recross."

"Was covid happening when Matthew Farwell have his first and second child?"

"Objection."

"Overruled."

"No."

"You texted that there was a box of chocolates around the time of the third child's birth on his desk and you wanted to bring them to him?"

"Yes."

"Nothing further."

"You are excused."

Open original post on X

9:18:38 AM ET | Status 2113258730506559821

"Your honor, I think you contemplated an instruction prior to this next witness."

"Jurors, from time to time I want to give you a special instruction. This next witness may introduce certain evidence that you can consider for one particular purpose but for no other purpose. I will instruct you when that occurs. You may not use this evidence to infer that, because of the defendant, Mr. Farwell's alleged character, he committed the crimes charged. You may only consider it as to his plan, motive, or opportunity to commit the acts charged in this case."

Open original post on X

Sarah Sproul

9:19:26 AM ET | Status 2113258931715711300

"The government calls Sara Sproul!"

"The defense objects!"

"Noted for the record but denied."

This is one of the affair partners of Farwell!

Open original post on X

9:20:14 AM ET | Status 2113259131414925403

"Good morning. State your name, please."

"Sarah Sproul."

"When were you born?"

"1988."

"Do you know Matthew Farwell?"

"How do you know him?"

"Our parents grew up together. I have known him his whole life."

"Do you know his wife?"

"Yes, since she started dating him."

Open original post on X

9:21:25 AM ET | Status 2113259429621534986

"Exhibit 160 please. Could we go to page 2 please. Do you recognize any names on this document?"

"Umm, I see Matthew and Michelle Farwell."

"Your honor, I'd like to move exhibit 160 into evidence."

"Objection, not familiar evidence to the witness!"

"Your honor, 902!"

"Counsel?"

"Not appropriate witness."

"Counsel, move on with the questions."

Open original post on X

9:22:26 AM ET | Status 2113259685163774424

"Turning to 2016, how did your relationship with Matthew Farwell change in 2016?"

"I had broken up with a long term boyfriend, and Matt and I had always been friends, but we started a physical relationship at that point involving sex."

"Was Matthew Farwell married in 2016?"

"Were you married?"

"No."

"How old were you in 2016?"

"28."

"How old was Mr. Farwell?"

"31."

Open original post on X

9:23:19 AM ET | Status 2113259909651247449

"Were you friends with Matthew Farwell and his wife in 2016?"

"Yes."

"Did you socialize with them in 2016?"

"Objection. Form and 401./403"

"Overruled."

"Yes."

"Were there any occasions were you and Matthew Farwell were at a social function and his wife was also there, in 2016?"

"Objection."

"Sustained as to form."

Open original post on X

9:24:02 AM ET | Status 2113260091193659541

"Did you attend any social functions with Matt Farwell in 2016?"

"Objection."

"Overruled."

"Yes."

"And was Matthew Farewell's wife there?"

"Sometimes."

"And would Matt Farwell talk to you privately there?"

"Yes."

Open original post on X

9:26:15 AM ET | Status 2113260646129185218

"When you attended these social gathering with Matthew Farwell and his wife in 2016, what, if anything, did Matthew Farwell do with you physically?"

"Sometimes he would come around the corner to talk. Sometimes he would try to give me a kiss or something like that."

"Did that involve touching that was more than friendly?"

"Objection."

"Sustained."

"What, if any, kind of physical touch happened between you and Matthew Farwell in 2016 at social gathering where his wife was present?"

"Sometimes he would come talk to me. Sometime we would kiss or have physical touch or something like that."

"You said you engaged in sex with Matt Farwell in 2016?"

"Yes."

"Where?"

"A car like situation most of the time?"

"Ever anywhere else?"

"I can't remember. I had an apartment. He had a house, too. It could have been there. I can't fully remember every incident."

Open original post on X

9:26:48 AM ET | Status 2113260786126926004

"Did Matthew Farwell ever come to one of your sexual encounters wearing a mask?"

"Objection. We ask your honor to note the year."

"Overruled."

"He did not."

"Did he ever come to your sexual encounters wearing a disguise?"

"No."

Open original post on X

9:28:06 AM ET | Status 2113261114964291831

"Did you communicate with Matthew Farwell in 2016 via text?"

"Yes."

"Did the texts include texts about meeting up to have sex?"

"Objection."

"Sustained as to form?"

"What, if anything, did you and Matthew Farwell text about in 2016?"

"Checking in to see what I was doing, or a place to meet up to talk or whatever the situation may have been."

"Did he ever ask you to delete his texts with him?"

"Not that I recall."

"Was he concerned about people finding out about the affair?"

"He never told me anything about that."

Open original post on X

9:29:15 AM ET | Status 2113261402164981818

"Did he appear concerned that his wife might find out in 2016?"

"Objection."

"Sustained as to form."

"What, if anything, did you observe Matthew Farwell in 2016 about his concerns about people finding out about the affair."

"Objection."

"Sustained."

"I'll move on."

"When did you stop being physically intimate with Matthew Farwell?"

"Fall of 2016."

"Nothing further."

Open original post on X

9:29:42 AM ET | Status 2113261515386073180

"Cross."

Kimberly C. Stevens.

"You were both consenting adults?"

"Yes."

"You didn't want anyone to find out about the affair, did you?"

"Yes."

Open original post on X

9:30:23 AM ET | Status 2113261686920515953

"Did Mr. Farwell want his wife to find out about the affair?"

"I would assume not."

"To your knowledge, did Sandra Birchmore ever babysit..."

"Objection. Scope."

"Sustained."

Open original post on X

9:30:45 AM ET | Status 2113261777865855454

"Your relationship ended years before coivd, didn't it?"

"Yes."

"Thank you for being here."

"You are excused."

Open original post on X

Jason Pickard

9:31:07 AM ET | Status 2113261873562779845

"The Government calls Jason Pickard!"

Open original post on X

9:31:16 AM ET | Status 2113261909742862635

HERE WE GOOOOOOOO

Open original post on X

9:31:53 AM ET | Status 2113262064093344241

"Counsel, briefly on WhisperTech for one matter."

Sidebah!

Open original post on X

9:35:56 AM ET | Status 2113263086358380724

"Jurors, thank you for your patience, we try to make the best use of our time. You got here so quickly today we needed to address one more thing. I need to give you an instruction. It is different than the prior. Juror you are about to hear testify from a witness testifying under a grant of immunity. This testimony may not be used against him in any future criminal proceeding. However, he can be charged for perjury if he makes a false statement. Deciding the credibility of any witness i up to you, but weigh this testimony with special; care, and you must determine if the witness has been impacted by the outcome of this case, any preju8dice against the defendant or any benefits he may receive from testifying for the prosecution. The witness may be called."

Open original post on X

9:36:37 AM ET | Status 2113263257305616644

Jason Pickard takes the stand.

He is huge.

He is out of shape, he is wearing a back brace to the stand.

He is so tall we can't see his face as he stands.

He has a goatee and black rimmed glasses. Yellow shit. Huge belly.

Open original post on X

9:37:09 AM ET | Status 2113263390621630517

"My name is Jason Pickard."

"How old are you?"

"I am 37."

"Are you employed."

"Yes, I am a defense contractor with the U.S. air force."

OH MY GOD!

Open original post on X

9:37:17 AM ET | Status 2113263422288822492

"My name is Jason Pickard."

"How old are you?"

"I am 37."

"Are you employed."

"Yes, I am a defense contractor with the U.S. air force."

OH MY GOD!

Open original post on X

9:38:13 AM ET | Status 2113263658000064961

"Are you a veteran?"

"Yes, I was an active duty service member."

"You indicated that were active duty?"

"Previously."

"Did you join the army reserve/"

"Yes, in 2016."

"Are you still in the army reserve?"

"Yes."

"In what capacity?"

"I don't understand."

"What do you do there?"

"I lead troops. I am a master sergeant."

Open original post on X

9:39:50 AM ET | Status 2113264067737489696

"Did you move to Sharon, Massachusetts, at some point?"

"Yes, 2017."

"Why?"

"I was an army recruiter posted in Quincy."

"What is that job?"

"It's kind of in the name. To encourage young people to serve their country as a solider. We guide them through the enlistment process. Getting them in shape to ship to basic training. Bringing them to processing and then to the airport when they ship to training."

"Do potential recruits come to you office to meet with you?"

"Yes."

"Do you do outreach?"

"Yes, we would work with high schools and community centers for the purposes of relationship building and seeking new recruits."

Open original post on X

9:41:40 AM ET | Status 2113264527647052132

"Did you have any social media in your role as a recruiter?"

"Yes, we were encouraged to use Facebook and Instagram, kind of big ones, as a way to reach young people and encourage them to serve."

"Exhibit 379 please. This is a December 4, 2019, conversation at 8:37pm and someone name Sandra Birchmore reaches out?"

"She says Hi and what do you say?"

"Hi, have you ever considered the army as a way to earn federal college benefits, learn a new trade, improve your resume, and challenge yourself."

"Did you send that message in response to others?"

"Yes."

"Had you met or communicated with Sandra Birchmore before this?"

"No."

"How old was she then?"

"22."

Open original post on X

9:42:58 AM ET | Status 2113264854991593564

"She says she was sent home, and she now needs a recruiter to get waivers."

"Yes."

"Then she said she disclosed allergies to 3-5 people, was told her paperwork was all set, and her paperwork never got updated, her med docs were pulled and she was sent home. What do you say?"

"I asked who she was working with."

"She said LaPointe."

"Who is that?"

"A colleague of mine in the same office."

Open original post on X

9:44:01 AM ET | Status 2113265118398042544

"Did you and Ms. Birchmore discuss recruitment after that?"

"No."

"Who was her recruiter after that?"

"Sgt [inaudible]."

"Was there any rules about recruits working with more than one recruiter?"

"It was considered rude to steal recruits from others."

"Did you ever server as her recruiter?"

"No."

"Did you communicate with her until her death?"

"Yes."

Open original post on X

9:44:38 AM ET | Status 2113265275348881881

"Did those communications evolve beyond recruitment?"

"Yes. We went to Facebook and snapchat."

"Did you meet with her in person and begin a sexual relationship in December of 2019?"

"Yes."

"Were you married at that time?"

"Yes."

Open original post on X

9:45:07 AM ET | Status 2113265397525103069

"Did you and Ms. Birchmore ever discuss whether you had served as her recruiter?"

"It came up briefly and I told her that would not be appropriate if she was working with [inaudible.]"

Open original post on X

9:45:59 AM ET | Status 2113265614248677419

"On December 19, you say?"

"Up front, I'm not looking for anything serious, are you okay with that?"

"I'm fully okay with that?"

"Okay, but I can't be your recruiter. I am your recruiter you are a recruit, it would be against the rules."

"You then started a sexual relationship with her?"

"Yes."

Open original post on X

9:47:31 AM ET | Status 2113266000669843558

"What were your initial concerns about speaking to federal authorities about Ms. Birchmore?"

"The UCMJ. The adultery is against the code as does the recruiter/recruit relationship."

"So adultery is a crime under the UCMJ?"

"Yes."

"As is sleeping with a recruit even if you are not their recruiter?"

"Yes."

"And did the US Attorney's Office give you immunity?"

"Yes."

"And what did that entail?"

"If I testify truthfully in this case, my indiscretions as to the adultery and the UCMJ code about recruiter/recruit relationships would not be used against me."

Open original post on X

9:48:32 AM ET | Status 2113266256660865460

"Did you meet up with Ms. Birchmore for more than sex?"

"Yes, we became close friends."

"What was she like."

"Bright, lovely, direct. She always told you exactly what she felt."

"Did she tell you about her upbringing?"

"Yes, she never knew her dad, her mom died, and then her grandmother passed."

"How old was she when her grandmother passed?"

"17 or 18."

Open original post on X

9:49:30 AM ET | Status 2113266499099983935

"Did she ever talk about cutting and her mental health?"

"Yes, cutting as it involves not strictly suicide is..."

"Objection."

"Sustained."

"Did Ms. Birchmore use the word cutting?"

"Yes, she told me what cutting was, she told me she engaged in it around the time her grandmother died. She told me cut her thighs and her arms to a lesser extent."

Open original post on X

9:50:25 AM ET | Status 2113266729635750031

"During the 14 months that you knew her, did she ever tell you she was engaging in cutting?"

"No, ma'am."

"Did she ever tell you she was engaging in cutting?"

"No."

"What was her texting style like?"

"Consistent. To be Sandra's friend meant to be very involved. She was not afraid to reach out. She was somewhat demanding of attention. She was quick to respond to my messages and she would send me multiple messages."

Open original post on X

9:51:31 AM ET | Status 2113267006178771347

"Did Sandra Birchmore ever mention the name Matthew Farwell to you?"

"Yes."

"Have you ever met Matthew Farwell or anyone in his family?"

"No, ma'am."

"What you knew about Matthew Farwell was based on what Ms. Birchmore told you about him?"

"Yes, she told me she mainted a relationship with Matt. Eventually she revealed to me that the relationship started when she was a minor."

Open original post on X

9:52:25 AM ET | Status 2113267233975677027

"Did she tell you whether she was in a sexual relationship in Matt in 2019?"

"Yes."

"And, despite that, you also engaged in a sexual relationship with her?"

"Yes."

"And she told you that started when she was a minor?"

"Yes, she told me it was through the police cadet type program."

"How old was she?"

"13 or 14 years old."

Open original post on X

9:52:55 AM ET | Status 2113267359691821539

"What did she tell you about losing her virginity?"

"She told me Matt took it when she was 15. She told me has a police officer in Stoughton at the time. She told me has married at the time."

Long pause.

Open original post on X

9:53:42 AM ET | Status 2113267555901084043

"When ms. Birchmore told you she was in a relationship with matt, in 2019, and that it started when she was a minor, what did you do?"

"I encouraged her to report the event but she ultimately refused."

"Why?"

"I think a part of her still saw it a genuine romantic relationship."

Open original post on X

9:55:09 AM ET | Status 2113267920453177517

"How long into your relationship with Ms. Birchmore did she mention her relationship wtih Matt started when she was a minor and you encouraged her to report it?"

"A few months after our relationship began."

"What did she tell you about her feelings towards Farwell at that time?"

"Nothing specific."

"Did you report it?"

"No."

"Why?"

"I was afraid. I was a married man. I knew what it would do to my marriage, my children, my career. I also respected her request not to tell. I wasn't going to violate her consent in that manner."

Open original post on X

9:56:39 AM ET | Status 2113268297437258142

"Where was Sandra living at the time?"

"With her aunt."

"What was that relationship like?"

"It was tense. Sandra and her aunt both wanted her to be out on her own, but Sandra's financial situation made it difficult to move out of the home."

"Did she eventually move out?"

"Yes, in the fall of 2020."

"Where did she live in the fall of 2020?"

"A hotel."

"Then where?"

"An apartment in Canton."

"When did she move into the apartment?"

"Late fall, early winter of 2020."

"Did she talk to you about the apartment?"

"Yes, she was excited. She saw it as a stepping stone to being an adult. She was very excited about it."

Open original post on X

9:57:30 AM ET | Status 2113268509861953611

"You visited her at her apartment?"

"Yes, I would take the elevator. I would text her. She would come down and let me in. Sometimes she would give me a code and I would enter it to get into the front door."

"She gave you a code?"

"Yes, I believe so."

"Did she ever make you a key?"

"No."

Open original post on X

9:58:33 AM ET | Status 2113268776397398434

"You took the elevator?"

"Yes."

"Where was her apartment in relation to that elevator?"

"Directly to the right."

"What happened the first time you were there?"

"She was excited. She gave me a tour. She was upbeat and proud of herself for having her own place."

"What did she do for work at the time?"

"A teacher's aide."

"Did she like her job?"

"She liked her job but she aspired to more. She wanted to work in healthcare."

Open original post on X

9:59:07 AM ET | Status 2113268918513234351

"Did Sandra plan to enter the field of healthcare?"

"Yes, she had applied to nursing programs and CNA courses. She was accepted to one program prior to her death."

"Do you know which one?"

"I don't know off hand."

Open original post on X

10:00:30 AM ET | Status 2113269267290341669

"During the 14 months that you knew Ms. Birchmore, did you discuss her finances with her?"

"Not in any real depth, but she did mention she was stressed."

"Was that the case for the entire time you knew her?"

"Yes, she lived paycheck to paycheck the entire time from December of 2019 until 2021."

"And she was 22 during this relationship?"

"Yes, ma'am."

"Did she ask you to help with physical injuries?"

"Yes, she told me she hurt herself playing Volleyball. I had some experience treating light muscle strains. So I used KT tape on her shoulder."

Open original post on X

10:01:17 AM ET | Status 2113269464368320612

"When did she injure her shoulder?"

"I don't recall."

"Did you ever see Ms. Birchmore in a sling?"

"Yes, sometime during the relationship."

"Exhibit 381 offered."

"Objection, 403."

"Overruled. I'll allow it."

Open original post on X

10:02:05 AM ET | Status 2113269666483511339

It is a picture of Sandra in a sling.

She is glowing. She has a blue dress on with white spots.

Her hair is golden and flowing in the early morning light of a kitchen sliding door.

She has a necklace on with a dolphin charm.

Open original post on X

10:03:39 AM ET | Status 2113270058365456623

"What pain was she in?"

"Sharp but not incapacitating."

"Did you have a relationship with Ms. Birchmore until Feb 1 of 2021?"

"We didn't speak for a month or two, or meet, and I don't remember, but otherwise yes."

"How did she react to that break?"

"Not well."

"What do you mean?"

"Um..earlier I stated that Sandra can be demanding of attention. A break from that attention and friendship made her unhappy."

"Did she kept communicating with you?"

"Yes."

"Did she kill herself?"

"Objection."

"Sustained."

Open original post on X

10:04:40 AM ET | Status 2113270314146677210

"Did you resume a sexual relationship with Sandra Birchmore in the fall of 2020?"

"Yes."

"Did you always use protection to prevent pregnancy?"

"Sometimes."

"Sometimes not?"

"Yes."

"And did Sandra tell you she then got pregnant?"

"Yes."

"How did you react?"

"I was worried, concerned that it may be my child but Sandra told me that it was not mine and there was no way it could be mine."

Open original post on X

10:05:46 AM ET | Status 2113270590723240420

Sandra tells you that she is Pregnant, 3.5 weeks.

"You say, me?"

"Yes."

"She says, no, we didn't do it during my fertile period."

"Yes."

"Who did she tell you the father was?"

"Matt."

"What was her attitude?"

"She was ecstatic. Very excited. I had never seen her so upbeat. So full of joy and happiness. She wouldn't stop talking about it, for one."

Open original post on X

10:07:05 AM ET | Status 2113270923155370408

"Did she make any changes to her body or her self care after she became pregnant?"

"Yes, she stopped drinking. Her eating habits got cleaner. Less fast food. More fixing her own meals."

"What did she tell you about Matt?"

"That he would go from angry and concerned to excited and happy."

"What did she say about the baby's birth certificate."

"That she wanted him to sign as the father but he was hesitant or refusing. She also said she was going to ask for child support."

Open original post on X

10:07:53 AM ET | Status 2113271124838490227

"Jan 9, 2021, she texts you he is really pushing her, and she will make this a court fight, but she doesn't have time for this and she barely has time for herself?"

"Yes."

"Jan 12, 2021, she says to you, but like what I'm asking for in child support is nothing compared to what I should be getting."

Wow!

Open original post on X

10:08:42 AM ET | Status 2113271328505552992

"When she talked with you about her plan for child support and the birth certificate how did you react?"

"I was concerned because the behavior she talked about Matt having was erratic and inconsistent."

"Objection."

"Overruled as to this but counsel next question."

"Did you express those concerns to Ms. Birchmore?"

"Yes."

Open original post on X

10:09:14 AM ET | Status 2113271463205904676

"Did Ms. Birchmore tell you on Jan 24, 2021, about something Matt had done?"

"More specificlly?"

"May I have one moment your honor?"

"You may."

Open original post on X

10:10:06 AM ET | Status 2113271681368371570

"Your honor, I have a back injury, if I may be permitted to stand to relieve some of the pressure."

"You may."

He is now testifying standing up. His hands are crossed over his crotch. This is weird.

Very weird.

Open original post on X

10:10:24 AM ET | Status 2113271757230461058

What the hell is going on right now. Why is this man standing.

lol they just changed the camera angle so we can see him!

Open original post on X

10:11:42 AM ET | Status 2113272084755325424

I have never, in my life, seen a witness in federal court stand during direct! This is wild. He hangs his head in shame as the DOJ reads the text about Farwell looking into Sandra's closet and bathroom just a few days before her death.

"What did you say?"

"What about the birth certificate?"

"I think he's signing it this week. He's coming back. I'm not sure, but it was like a complete 180 from where we were at."

"How did you react to those texts?"

"I remember being concern."

"Did you relay that concern to Ms. Birchmore?"

"Yes, Ma'am."

Open original post on X

10:13:30 AM ET | Status 2113272539703058569

Did Sandra talk to you about making a key to her apartment for Matt?"

"Yes."

"Exhibit 756 please. This is not all yet in evidence. On jan 28th, 2021 did you communicate with Ms. Birchmore about baby-proofing the apartment?"

"Objection."

"Sustained as to form."

"What if any plans was Ms. Birchmore making for the baby at the end of 2021?"

"She was purchasing baby clothes. She was anxious about baby proofing the apartment."

"What was she purchasing?"

"Car seats and strollers. Also a pack n play."

Open original post on X

10:15:15 AM ET | Status 2113272979199042016

"What is baby proofing her apartment?"

"Objection."

"Overruled."

"She was concerned about sharp edges and corners. The child getting into places he or she should not. I was able to give her some pointers in that direction. The first thing I said is the child won't come out walking and talking so you have a few months but she was very anxious. So I told her you needed rounded corners on the counter tap, baby locks on the cabinets where the chemicals were."

"Was this the last time you saw Ms. Birchmore?"

"Yes."

"What was her demeanor?"

"She was excited to be a mother. It was her first time. She felt she was going through this without the father."

"Did she say she was suicidal or depressed?"

"Not at all."

Open original post on X

10:16:57 AM ET | Status 2113273408490287611

"Did you communicate with her after that?"

"Yes, I believe so."

"On jan 31st, 2021, Ms. Birchmore says she got some good news today. She tells you she got a half day at work and a snow day the next day?"

"Yes."

"Exhibit 387 please. And at 4:17pm on Feb 1st, she asks you how work was that day?"

"Yes."

"Then she says she fell on ice?"

"Yes."

"And you say, are you okay?"

"Does she respond?"

"No."

"When do you reach out again?"

"The 7th at 3pm."

Open original post on X

10:17:59 AM ET | Status 2113273664619663541

"Did you learn Ms. Birchmore had died at some point?"

"Yes."

"Did she ever, at any point you knew her, say she was suicidal attempt suicide or talk about suicide?"

"No, ma'am."

"What was her affect about her pregnancy?"

"Objection."

'Sustained."

"On june 5, 2025, did you provide a DNA sample?"

"Yes, an FBI agent swapped my cheek."

Open original post on X

10:19:25 AM ET | Status 2113274025476522446

June 24, 2025, correction.

We see the exhibit where Pickard consented to his swap.

"At some point did you learn you were the father of Ms. Birchmore's unborn child?"

"A couple months after June, 2025, about a year ago now."

"Who told you that?"

"Your office, through my attorney."

"What did you learn?"

"I learned I was the father."

"Did you learn the sex of the child?"

"Objection."

"Sustained."

"Did Sandra ever tell you that you could be the father?"

"No."

"Who did she tell you was the father?"

"Matt."

Open original post on X

10:19:48 AM ET | Status 2113274124172714052

"If she did tell you you were the father, what would you have done."

"Objection."

"Sustained."

"May I have a moment your honor?"

"You may."

Open original post on X

10:20:59 AM ET | Status 2113274420055756982

"Mr. Pickard, you indicated that shortly after you met Ms. Birchmore, she told you about the inception of her relationship with matt?"

"yes."

"And that she was underage?"

"Yes, ma'am.

"Objection, asked and answered."

"It can stand. Counsel next question."

"Did you ever discuss that fact with her again?"

"Yes, a few times, throughout our relationship."

"I have no further questions for the witness, thank you."

"Cross."

Open original post on X

10:21:29 AM ET | Status 2113274546774225167

Sidebah!

Open original post on X

10:30:51 AM ET | Status 2113276903142379580

We found Pickard.

He works for Gulfstream Aerojet.

Sidebah ends.

Open original post on X

10:31:04 AM ET | Status 2113276957748031997

It's Joanne Daley on cross. She has her computer.

Here we go.

Open original post on X

10:31:54 AM ET | Status 2113277169325719998

"Mr. Pickard, Sandra Birchmore texted you on Jan 25, 20921, at 4:42pm do you remember that?"

"Not specifically."

"She said they changed her estimated due date?"

"That sounds right."

"She asked to call you?"

"I don't recall."

Open original post on X

10:33:45 AM ET | Status 2113277633630724357

"Does this refresh your recollection?"

"Yes, Ma'am."

"And she said there was a change in her due date and asked to call you?"

"Yes ma'am."

"It this being offered, counsel?"

"It's not it in yet."

"Okay let's get it in first before we talk about."

"Move to admit."

Open original post on X

10:34:47 AM ET | Status 2113277895913480534

"Exhibit 759 published. She says they changed her estimated due date and then says they said it could be

changed again?"

"Yes, and then I said why changed?"

"And she said, oh, can I call you?"

"Yes."

"And you talked for 30 minutes?"

"If that's what the phone records say."

Open original post on X

10:36:14 AM ET | Status 2113278257780969518

"She said the baby is slightly bigger so it changed the due date. The told me today earlier than they predicting."

"Then you asked why are you hanging up on me?"

"And she replied our secrets."

"Yes."

"What was that?"

"I don't recall. The secret of our relationship."

"Then she says don't tell no one, lol. Then she says please don't tell anyone."

"Yes."

"Is she saying don't tell anyone you are the father or don't tell anyone about your relationship?"

"She never told me I was the father, so the latter."

"What was the phone call about?"

"I don't recall."

Open original post on X

10:36:52 AM ET | Status 2113278420620902708

"What questions did you refuse to answer when investigated by the FBI?"

"The nature of my relationship with Sandra Birchmore?"

"You declined to answer when you met her, when you began a sexual relationship and when you tried to end that relationship?"

"That's correct."

Open original post on X

10:38:26 AM ET | Status 2113278813157085637

"And you met her through Facebook when she reached out about army recruiting?"

"Yes."

"And by the next day you were sexually texting her?"

"Not to my memory."

"Did you text her the next day why are you flirting with me?"

"Yes ma'am."

"When did it become sexually explicit?"

"Within a day."

"Who initiated the explicit texts?"

"I remember Sandra sending the first flirty texts."

"You said Sandra always knew what she wanted, what she was looking for and what she liked...that was in part as to her sexual preferen....

"Objection."

"Sustained as to this."

Open original post on X

10:39:38 AM ET | Status 2113279114736026094

"You said Sandra had a "go-bag?"

"Yes."

"What's that?"

"A packed bag ready for 24-48 hour travels."

"You declined to answer why you knew why she had that bag. Why?"

"I didn't want to implicate myself related to crimes of adultery or sexual relationships with a recruit."

"Why was that of concern about a go-bag?"

"Because being in her home would be evidence of those crimes."

Open original post on X

10:40:37 AM ET | Status 2113279361306538281

"At the first interview, you were interview by the FBI in your home in Sharon?"

"Yes."

"And you made an agreement with the FBI to only answer questions you were comfortable with?"

"Yes, ma'am."

"And you did share what you knew of Sandra Birchmore's mental health history."

"Objection."

"Sustained. You can ask questions to the witness, counsel."

"Okay."

Open original post on X

10:41:34 AM ET | Status 2113279599798858178

"She told you she previously tried to engage in self harm?"

"Yes."

"And there may have been more, too, right?"

"Objection."

"Sustained."

"And she told you she went on anti-depressants in the month prior to her death?"

"Objection. Objection withdrawn."

"You can answer."

"That sounds right."

Open original post on X

10:42:19 AM ET | Status 2113279790031548815

"You said she was happy and excited for her baby, so when she told you she went on antidepressants what, if any, discussion did you have with her?"

"I don't place much of a stigma on antidepressants. I am on them. There wasn't much of a discussion."

"Thank you for sharing."

Long pause.

Epic.

Open original post on X

10:42:51 AM ET | Status 2113279924991840279

"Did she tell you about the risks of antidepressants during pregnancy?"

"Yes."

"Did you know about those risks?"

"Objection."

"Sustained."

Open original post on X

10:44:14 AM ET | Status 2113280273097863227

"What did she tell you about her doctor's input about those medications?"

"Her doctor said her anxiety went up so she started a low dose."

"When Sandra mentioned cutting, what was the timeframe for that?"

"Shortly after the death of her grandmother. That was a few years before I met her."

"What did she tell you about her mother?"

"That her mother passed when she was younger."

"She told you her mother passed when she was younger?"

"Yes."

"Was it after high school?"

"I don't know exactly."

Open original post on X

10:45:30 AM ET | Status 2113280590187278834

"Do you recall a conversation where you texted Sandra and asked her about the differences between you and Matthew Farwell?"

"Objection."

"So, this is the basis of our sidebah? You can answer yes or no."

"I don't recall that conversation."

"Would looking at the conversation help you remember?"

"Yes. It's exhibit 759. Just for the witness. Sorry, 758. Just for the witness. Just look at this and read it for yourself."

Open original post on X

10:46:08 AM ET | Status 2113280750225424822

"Stopping here. Do you remember the question you asked her?"

"Yes."

"May the witness answer, your honor?"

"Your honor, he answered, he remembers it."

"Is there something else in this document, counsel?"

"Yes, next page."

Open original post on X

10:46:51 AM ET | Status 2113280932715106711

"Does this refresh your recollection?"

"Yes."

"Did you ask Ms. Birchmore..."

"Objection, multiple prior rulings."

"Counsel, back up to the start of the exhibit."

Open original post on X

10:48:18 AM ET | Status 2113281295325266389

"Counsel, in terms of relevance, I only see something on this page."

"Your honor, I'd say the second and third messages on this page and then on the next page, the first, and then the next, in terms of timeline, the middle of the proceeding page and all of these pages."

"I am objecting and asking to be heard."

"Not any further on this counsel. You can ask the question."

"Do you recall what you asked Sandra?"

"Yes."

"What did you ask?"

"Objection."

"Move forward."

Open original post on X

10:49:02 AM ET | Status 2113281480717734242

"What did Sandra Birchmore tell you about her relationship with Matthew Farwell?"

"She said, you are good at throwing me around and being super rough. Him, not so much, he is scared of hurting me."

"What did she say next?"

"Objection!"

"Sustained, Next page."

Open original post on X

10:49:42 AM ET | Status 2113281648162681290

"Then you asked her a further question, right, and, umm, what was that question about?"

"I asked her about the last time they had been together."

"No, I'm asking about the last text message."

"And that is what I'm objecting to."

"Lead here, counsel."

Open original post on X

10:49:56 AM ET | Status 2113281705750786058

"Can we be heard, your honor?"

"Not any further on this issue."

Open original post on X

10:50:47 AM ET | Status 2113281920075227352

"Then you ask if he is better at the sensual stuff, and she responds that she can only take so much of it, lol?"

"Yes."

"Then you asked the last time they were together and what did she say?"

"I don't even know. It's been a while."

"So in Feb, 2020. she said it had been a while."

Open original post on X

10:52:08 AM ET | Status 2113282258689757503

"You then talked to her a few days after she used the word secret?"

"Yes."

"Why did you go over?"

"She was anxious about child proofing."

"But didn't she tell you she wasn't going to be living in that apartment when the baby is born?"

"I don't recall that, no."

"Do you remember a text where Sandra told you Matt Farwell was looking in the bathroom and closet?"

"Yes, she told me that."

Open original post on X

10:53:13 AM ET | Status 2113282534813397062

"Did she later tell you anything else about that?"

"Not to my memory."

"Would looking at the texts help refresh your recollection?"

"Yes."

"Exhibit 756 please. This is from Jan 28, 2021, where you're talking about going to Ms. Birchmore's apartment?"

"Yes, I was going to stop by after work. I proposed 3:30."

Open original post on X

10:53:39 AM ET | Status 2113282642330181788

"I move to admit 756 in full."

"Counsel, objection?"

"No, your honor."

"756 may be admitted and published."

Open original post on X

10:55:18 AM ET | Status 2113283057822138648

"On this day, Sandra says what's up and you say what are you doing this afternoon?"

"Yes."

"And you say you might swing by and she says she'll be home by 3:30 and then has to go food shopping?"

"Yes."

"Then she says I am about to pull in, will you teach me the ropes before the thing, lol?"

"Like?"

"What I do and don't need to put high, lock, etc...I found out why he was looking in my closest and bathroom. Space and cuz he hasn't seen it?"

"Space like he wants to move in?"

"Not a clue, I am thinking more for the baby. He is out of his mind if thinks that though (as to the baby living in the closest). I am thinking of moving stuff around."

Open original post on X

10:56:36 AM ET | Status 2113283386101920134

"Did you take it the same way she explained it?"

"I thought she was talking about Matt Farwell moving in, which I thought was crazy for him."

"This was about you stopping by and you requested that?"

"Yes."

"What was your intention in seeing her?"

"I don't know, ma'am, we were friends."

"Did you two engage in sexual contact on that day?"

"Not to my memory, no."

"Is it possible?"

"Yes."

"She told you she was on pelvic rest?"

"Yes."

Open original post on X

10:57:12 AM ET | Status 2113283536371237340

"Sandra Birchmore, over the course of her relationship with you, would tell you certain things Matt Farwell said?"

"Occasionally."

"Did she ever show you those text exchanges?"

"I don't think so."

"So she only told you?"

"Yes."

Open original post on X

10:57:36 AM ET | Status 2113283636560539793

"I'm sorry your honor, can I have a cup of water?" -the witness

"Yes, sure!" - Judge

Open original post on X

10:59:02 AM ET | Status 2113283995878277505

"You said that Sandra Birchmore told you that she had been in basic training before?"

"That she had shipped to training, yes ma'am."

"And she left due to allergies?"

"Yes, ma'am."

"But it was actually because she had asthma?"

"Objection."

"Sustained, back up."

"Did you ever talk to LaPointe about Ms. Birchmore?"

"Yes."

"Did you learn why she first was sent home?"

"There were various things discovered during intake, including the asthma."

Open original post on X

11:00:03 AM ET | Status 2113284254058598422

"As a military recruiter, if someone discloses they have asthma, can they enter the reserves?"

"Not if they are currently treating their asthma."

"So Sandra Birchmore was having you tape her shoulder?"

"Yes, she told me she pulled or tore a muscle in her shoulder. I had previous experience in taking care of such minor wounds using KT tape to take the muscles, in this case the shoulder, to support the muscles while the heal and expedite healing."

Open original post on X

11:00:31 AM ET | Status 2113284369523618023

"Did you ever have sexual relations when you came over to tape her?"

"Yes, ma'am."

"So the shoulder injury didn't prevent that?"

"No, ma'am."

Open original post on X

11:01:39 AM ET | Status 2113284656648814822

"Other than the cutting after the death of her grandmother, did she tell you about further self harm?"

"No."

"Did she ever show you pictures of those scars on her body?"

"I don't know, it's possible."

"Can we pull up exhibit 684?"

"Your honor, may we be heard?"

"Okay, sir, step down, we'll take our mid morning break. We'll resume in 20 minutes!

Open original post on X

11:29:26 AM ET | Status 2113291646431293475

We are about to return.

The witness is standing in the box again. His hands are clasped in front of his crotch.

Farwell is sitting with both hands under his chin.

Now Farwell talks to Kimberly C. Stevens.

We await Judge.

Open original post on X

11:31:03 AM ET | Status 2113292054126293438

Jurors entering!

Open original post on X

11:32:36 AM ET | Status 2113292443059904635

"Mr. Pickard, you said on direct that having asthma is a no-go for being in the armed forces?"

"Yes."

"Sandra never mentioned she had allergies?"

"No."

"Did Sandra ever text you to say she was at the doctor's for allergy shots and an asthma check up?"

"I don't recall."

Open original post on X

11:34:56 AM ET | Status 2113293029859590539

"Do you recall her saying she had to reschedule a dentist appointment due to asthma problems?"

"I don't recall."

"If Sandra Birchmore had asthma, you would have no buisness being involved with her a recuriter in any way, right?"

"Yes."

"You were not her recuriter right?"

"Yes."

"It's bad form to poach a recurit?"

"yes."

"But even if you're not a recuriter for someone you can't sleep with them?

"Yes, that would violate the UCMJ.'

"Adultery is also a violation?"

"Yes."

"You asked her if she engaged in gagging or choking behavior?"

"Yes."

"And she said she was game but never did it before?"

"Yes."

"And is that also a violation of the UCMJ?"

Open original post on X

11:35:16 AM ET | Status 2113293115637235799

"And the deal you made with the government is that you will not be court martialed as a result of these crimes?"

"Yes."

Open original post on X

11:35:39 AM ET | Status 2113293210281755071

BREAKING:

Jason Pickard will NOT be court martialed under his immunity deal in the Sandra Birchmore and Matthew Farwell case.

Open original post on X

11:36:05 AM ET | Status 2113293322513228189

"Did Sandra Birchmore tell you she had a prior miscarriage?"

"Yes."

"Did she tell you she didn't know who the father was?"

"Objection."

"Sustained."

Open original post on X

11:36:14 AM ET | Status 2113293358332342751

"Did Sandra Birchmore tell you she had a prior miscarriage?"

"Yes."

"Did she tell you she didn't know who the father was?"

"Objection."

"Sustained."

Open original post on X

11:37:10 AM ET | Status 2113293593397915898

"Did Sandra Birchmore tell you she had 1 prior miscarriage?"

"Yes."

"Did she tell you she did not know who the father was?"

"Objection."

"Sustained. Counsel 401."

"Your honor, may we be heard, it's 601."

"No, I understand the argument, but no. Sustained on the objection."

Open original post on X

11:38:24 AM ET | Status 2113293905043030034

"You said Sandra Birchmore never expressed thoughts of self harm while you were with her, only before?"

"Yes, ma'am."

"But you told the FBI she did express such thoughts while you were with her?"

"I don't recall."

"Would looking at this 302 help you refresh your recollection."

"Yes."

Open original post on X

11:39:14 AM ET | Status 2113294113181233156

"Did Sandra Birchmore, while you were with her, express thoughts of self harm?"

"No, ma'am."

"Did you tell the FBI that she did?"

"It looks like that might be the case."

"Did you ask her okay and tell her to seek out help?"

"Yes, and she told me she was doing so and she was okay."

Open original post on X

11:39:46 AM ET | Status 2113294248749801972

"You said Sandra Birchmore refused to report her relationship with Matthew Farwell reported to law enforcement?"

"Yes."

"Is it because she didn't want her sex life put on trial?"

"Yes."

Open original post on X

11:40:26 AM ET | Status 2113294414500278777

"She told you she wanted child support of Matthew Farwell?"

"Yes, but we didn't talk specifics."

"$7,000?"

"We didn't talk numbers, ma'am."

"But she was in dire financial straits?"

"She lived in paycheck to paycheck, yes, ma'am."

Open original post on X

11:41:49 AM ET | Status 2113294763503853826

"I asked you earlier if Sandra Birchmore told you certain things Matthew Farwell had texted her, and you hadn't seen those texts?"

"Yes."

"Exhibit 760 for the witness only. Drawing your attention to the bottom text from, you may need your glasses, May or June of 2020. Do you recall having this text exchange with Sandra Birchmore?"

"I don't recall this exact text, ma'am."

"But you did have this exchange with her?"

"It seems to be, yes, ma'am."

Open original post on X

11:43:44 AM ET | Status 2113295244296872317

"Please read the first text you sent to her?"

"I'm sorry, what happened."

"Then Sandra said, he was just being a dick, he nis trying to be possession and controlling with me he has a whole while. I told him when your whale is gone. At least I don't beg someone for a baby for years and keep trying to take the risk like it's NBD and he didn't defend her and said we can talk in person. he told me it was my fault. I told him leave me along until you want to talk. I woke up to messages where he said he didn't want to hurt me and said we had worked through everything, Sandra, and then he told me he was sorry.

"Did you ever see that text from Matthew Farwell to Sandra Birchmore?"

"No."

Open original post on X

11:45:10 AM ET | Status 2113295608882540841

"The last text she sent you was about falling on the ice on Feb 1st, and you responded the next day?"

"Yes, ma'am."

"May I have a moment your honor?"

"You may."

"Nothing further."

Open original post on X

11:45:31 AM ET | Status 2113295695486787679

All of the public was just thrown out of the media room.

Media members only now.

Open original post on X

11:46:28 AM ET | Status 2113295935992189229

"Did Sandra tell you she was screened at 0 for self harm thoughts?"

"Something to that effect yes."

"You said on cross that she went on antidepressant because of her anxiety?"

"Yes."

"Not because she was suicidal?"

"Correct."

"And you said you have anxiety, like millions of Americans?"

"Yes, ma'am."

Open original post on X

11:49:06 AM ET | Status 2113296594942517332

"Mr. Pickard, you said on cross exam that in some point of Jan 2021, she said you were on pelvic rest, do you recall when that was?"

"Shortly after the new year."

"And did you ever engage in vaginal intercourse after she was placed on pelvic rest?"

"Objection."

"Overruled given the question on cross."

"No, ma'am."

"Why didn't she want to engage in vaginal intercourse after being put on pelvic rest."

"Objection, sustained as to form."

"What if anything did she tell you about her willingness to engage in vaginal intercourse after that point?"

"She wanted to protect the child, and she was on pelvic rest, and she intended to follow that to protect the child. She told me she would not be engaging in vaginal sex."

"Ms. Birchmore told you she did not want to put her sex life on trial?"

"Yes."

"And that sex life involved having sex with Matthew Farwell when she was 15?"

"Objection."

"Sustained."

"Did she tell you she started having sex with Matthew Farwell when she was a child?"
"Objection, asked and answered!"

"Sustained."

Open original post on X

11:49:44 AM ET | Status 2113296756561862974

"Mr. Pickard, did Ms. Birchmore tell you that on Jan 29th, 2021, the defendant was texting her about an experience that really felt like the r-word..."

"Objection."

"Sustained as to this question."

"Nothing further."

Open original post on X

11:51:19 AM ET | Status 2113297155498647813

"Recross."

"If Sandra Birchmore was involved with Matt Farwell days before she died, and told you otherwise, that would mean she lied to you?"

"It would appear so, yes, ma'am."

"In the course of your relationship did she ever tell you she put any marks on her body and show you?"

"No, not during the course of our reltaionship."

"Did she ever text you about marks and send you pictures of those marks?"

"Objection that was not my question."

"Counsel, we can look at the transcript, the question was narrower than this."

Open original post on X

11:51:45 AM ET | Status 2113297264110416178

"Your honor, can we pull up the transcript so we can close this loop?"

"Yep, hold on."

Whereupon the court and the court reporter look at the transcript with counsel.

Open original post on X

11:53:00 AM ET | Status 2113297577646883053

"The question was, 'did Ms. Birchmore, Ms. Birchmore never sent you any images of any cut marks on her body airtight let me start again, Ms. Birchmore never sent you any cuts, marks, on her body or any injuries that she caused to herself on purpose, did she?"

"Your honor may inquire based on that?"

"On that question and answer, yes."

Open original post on X

11:53:38 AM ET | Status 2113297736451969097

"Did Ms. Birchmore ever tell you about any injuries she caused to herself?"

"She cut herself with a potato peeler one time on accident, so, yes, I guess, ma'am."

Open original post on X

11:55:41 AM ET | Status 2113298255681302801

"Would looking at a photo Sandra Birchmore sent you refresh your recollection as to any mark..."

"Objection."

"Sustained, this wasn't the question counsel. Counsel, I read the question before. Counsel, pose the question you want to ask."

"Did Sandra Birchmore ever send you a photo of a mark or injury she did to herself?"

"Objection."

"Sustained."

"On purpose counsel?

"On purpose."

"May he answer that question?"

"The question is will seeing it refresh my memory?"

"Possibly."

"Exhibit 756 for the witness only."

Open original post on X

11:56:27 AM ET | Status 2113298446870630501

"Read it to yourself please.""

The witness starts to read out loud.

"No! No! Stop!"

The witness stops talking and reads.

Open original post on X

11:57:29 AM ET | Status 2113298704564170915

"Does this refresh your recollection about whether Sandra Birchmore ever texted you about a mark or a bruise she put there on purpose?"

"She didn't put those there."

"I'm not referring to the photo. The answer she gave you."

"Objection."

"Sustained, counsel, any other questions?"

Open original post on X

11:58:07 AM ET | Status 2113298865998967120

"You said on redirect that, if like millions of Americans you have anxiety and take medication?"

"Yes."

"Does it make things worse before it makes them better?"

"In some cases, that's my understanding, I am not a medical professional."

Open original post on X

12:00:02 PM ET | Status 2113299348427509976

"Did Sandra Birchmore told she told you she scored a 17 on the anxiety test?"

"Yes."

"She didn't say it was the depression test?"

"Not to my memory."

"Prosecutors ask you on redirect about Ms. Birchmore being on pelvic rest, and you were asked if you and Ms. Birchmore engaged in vaginal intercourse shortly before her death?"

"Yes."

"When I asked you on cross about what sexual activity you engaged in when you went over there, you said you didn't recall?"

"Yes."

"But now you can say you didn't engage in vaginal intercourse?"

"Yes."

"Did you engage in anal intercourse?"

"Negative. No, ma'am."

"What kind of sexual activity did you engage in that day, if you did so?"

"Oral."

"Is that your memory."

"I don't recall sexual activity that day."

Open original post on X

12:00:49 PM ET | Status 2113299545580765647

"What other DNA results did you learn about from the government in this case about uhhh where you're DNA may have been found on Ms. Birchmore?"

"Objection beyond the scope of redirect."

"Yea, sustained as to this counsel."

Open original post on X

12:01:07 PM ET | Status 2113299622907285574

"One moment your honor?"

"Yes."

Open original post on X

12:02:16 PM ET | Status 2113299912389444031

"Did Sandra Birchmore ever indicate to you that she caused an injury to her wrist?"

"Objection beyond the scope of redirect."

"Sustained."

"Nothing further."

"You may step down."

Open original post on X

12:18:40 PM ET | Status 2113304037831410058

Jason Pickard Leaves Moakley After Shocking Sandra Birchmore and Matthew Farwell Immunity Testimony! https://t.co/o1VQRfOWGZ

Open original post on X

12:19:23 PM ET | Status 2113304217104294035

Got him.

Open original post on X

12:41:33 PM ET | Status 2113309796577202567

@faster34me @lynnz0587 Another one of Matthew Farwell's affairs and now MSP DNA crime lab tech.

Open original post on X

Ms. Duvall - Massachusetts State Police Crime Lab

Editorial note: Grant had stepped away while Jason Pickard exited the courthouse and returned with the MSP crime-lab witness already testifying. The retrieved corpus identifies the witness as Ms. Duvall; no separate Grant-authored witness-introduction post was retrieved.

12:51:37 PM ET | Status 2113312330746642522

@ameliarstern1 I have made it back to the overflow room.

The MSP crime lab tech is on the scene.

Open original post on X

12:54:20 PM ET | Status 2113313012715061472

The MSP crime lab tech is reviewing finger nail clippings.

"What is any DNA testing was done on the right hand clippings of Sandra Birchmore?"

"It had two contributors, one of which was presumed to be Sandra Birchmore."

"Matthew Farwell is excluded."

"What about Jason Pickard."

"Two times more likely than if it was Sandra Birchmore and Jason Pickard than if it was Sandra Birchmore and an unknow individual."

Open original post on X

12:59:54 PM ET | Status 2113314412841034231

@ameliarstern1 The MSP DNA tech confirms that Matthew Farwell's DNA is on the non-sperm fraction stain J2.

Open original post on X

1:02:23 PM ET | Status 2113315038312403432

"What about the sperm fraction of stain J2?"

"The STR profile was four contributors, including male DNA. Sandra Birchmore was assumed as one of the contributors."

"How can her DNA be in a sperm sample?"

"There can be some carrier of the female DNA into the male DNA when separating."

"What were the results as to Jason Pickard for stain J2?"

"790 quadrillion times more likely if it originated from Sandra Birchmore, Jason Pickard and 2 unknown individuals than if it originated from Sandra Birchmore and three unknown individuals."

Open original post on X

1:03:08 PM ET | Status 2113315228759052496

@ameliarstern1 Lunch break until 2PM!

Open original post on X

2:11:06 PM ET | Status 2113332333491200442

@ameliarstern1 I'm not feeling great. I'm catching some air and may take the afternoon off during DNA testimony from the crime lab tech from MSP.

I am pain from that scrum.

I hope you all won't mind.

God bless you all.

Follow the incredible @ameliarstern1 and @MicheleMcPhee for updates!

Open original post on X

2:18:22 PM ET | Status 2113334161343693092

@ameliarstern1 @MicheleMcPhee Hold on.

We are already on cross of the DNA expert.

I may stick around.

Open original post on X

2:29:38 PM ET | Status 2113336994545738124

@ameliarstern1 @MicheleMcPhee "What is background noise or stutter that you see in your electropherogram?"

This is hard to transcribe because I don't speak science.

Open original post on X

2:31:53 PM ET | Status 2113337563343663395

"Another area of complexity with mixture evidence is how much DNA did each person contribute?"

"Yes."

"Why?"

"Because, whether you're doing STR or male-specific testing, you have to be able to say how many people are in a mixture. You have to figure out the mixture porprtions. Youre' figuring how much you're expecting to see for each indvidual contributor in that profile to see if you got it right."

Open original post on X

2:32:44 PM ET | Status 2113337776418574635

"The lower the amount of contributor DNA, the more complex the mixture you're dealing with, yes?"

"It can be, yes."

"DNA degrades over time, doesn't it?"

"It can, if not stored in the right environmental conditions?"

"And that can increase the complexity of the mixture?"

"Yes."

Open original post on X

2:34:10 PM ET | Status 2113338135501304135

"Some labs will say a mixture is too complex to test, is that right?"

"Yes."

"How is a DNA profile generated?"

"Millions of copies of markers at a specific location are identified and then sorted through an instrument similar to how a coin counter might sort coin. Each allele goes in it's matching slot. In layman's terms."

Open original post on X

2:34:47 PM ET | Status 2113338294024941822

@ameliarstern1 @MicheleMcPhee "Some of the people can contribute the same alleles at the same spot?"

"Yes, and that can be another complexity."

"What about fraternal twin brothers, would that effect the peak height?"

"They may or may not have the same alleles."

Open original post on X

2:36:45 PM ET | Status 2113338787472248872

@ameliarstern1 @MicheleMcPhee "Teasing apart the DNA profiles of multiple contributors is difficult?"

"Yes, that is why we use a software to help us."

"And just because someone's alleles are in a mixture, that does not mean they contributors to the mixture, right?"

"Can you please rephrase the question."

Open original post on X

2:37:30 PM ET | Status 2113338975343558783

@ameliarstern1 @MicheleMcPhee "And, in these process, a peak may drop out of the copying?"

"Yes, if the starting amount is low then when that third step happens a copy may be made that is not as effective."

Open original post on X

2:39:11 PM ET | Status 2113339401719943265

"Does this make interpretation difficult and require judgement?"

"Yes, that is part of using the software."

"And because of these difficulties, it can be difficult to determine if a person of interest contributed to a specific sample.""

"Well, in that instance, we don't know the profiles that we will compare them to at this stage. That is done up front. So, if a profile is not deemed intepreptable it doesn't matter what the referenced person has or not. It is only when the profiles are deeemed interperable that they are compared."

Open original post on X

2:40:31 PM ET | Status 2113339736852947393

"So, we have talked about difficulties that require your expertise and judgement, such as scholastic variation, what is that?"

"When I said we have a threshold below which a sister allele may have dropped out, so when you have a lower starting amount, you may run into that complication."

Open original post on X

2:41:33 PM ET | Status 2113339995264364612

@ameliarstern1 @MicheleMcPhee "If we had 5 individuals, that creates astronomical odds, and that would be too many?"

"I don't know. What was validated for us is that the cap was 4 -person mixtures."

Open original post on X

2:42:26 PM ET | Status 2113340216039833627

"Computer programs help interpret these complex mixtures, don't they?"

"Yes."

"And that software uses complex models to calculate probabilities?"

"Yes, and it is used to break down a mixture into it's component profiles."

"And that yields a likihood ratio?"

"Only if a comparison is performed."

Open original post on X

2:44:02 PM ET | Status 2113340620949315752

"In calculating the likelihood ratio, that software uses assumptions, doesn't it."

"Yes."

"Let's turn to the testing in this case, and please feel free to your reports. You tested biological material from Ms. Birchmore's fingernails?"

"Potential biological material, yes."

"From samples from her underwear at the time of her passing?"

"That I don't know, but they were her underwear."

Open original post on X

2:47:44 PM ET | Status 2113341553133420938

"And Mr. Farwell was excluded from the samples under Ms. Birchmore's fingernails?"

"Yes."

"Now what about stain J-2 on the underwear. In the STR test, there was a mixture of two contributors on the non-sperm fraction. And Sandra Birchmore was assumed there, and it was 96% of that mixture?"

"I can't say that for sure."

"And for Mr. Farwell there was a ratio from the computer and Mr. Farwell's contribution to the sample tested was 4% of the DNA?"

"If her percentage is correct then yes that is correct."

Open original post on X

2:48:19 PM ET | Status 2113341696742502599

@ameliarstern1 @MicheleMcPhee "Your honor, I understand your order to be that I could talk freely about the DNA and the other people excluded."

"Counsel, I know the ruling you are referring to, Ms. Riley is there something else?"

"Yes, WhisperTech please?"

Sidebah!

Open original post on X

2:49:37 PM ET | Status 2113342024447398051

@ameliarstern1 @MicheleMcPhee Sidebah is ongoing.

Open original post on X

2:50:24 PM ET | Status 2113342220996882811

@ameliarstern1 @MicheleMcPhee Farwell sits at counsel table with his left hand on his face. His index finger frames his chin and he holds himself up.

He shares an earphone with Joanne Daley for WhisperTech.

Someone covering the trial had to ask who Farwell's lawyer is.

I laughed to myself.

Open original post on X

2:52:21 PM ET | Status 2113342711776616693

@ameliarstern1 @MicheleMcPhee "Ms. Stevens, you may resume."

Open original post on X

2:54:16 PM ET | Status 2113343194389794964

"Are we still on J-2 sample?"

"Yes."

"Now, with Y-STR testing, the paternalitanl line is not just an individual male?"

"Correct."

"How many males are in Mr. Farwell's paternalilianl line?"

"No."

"Were you provided a sample of his twin brother William?"

"I didn't know he had a twin, and no."

Open original post on X

2:55:23 PM ET | Status 2113343475806810513

@ameliarstern1 @MicheleMcPhee "Would knowing that effect your Y-STR testing?"

"Yes."

"And in this sample, in sample J-2, the non-sperm fraction, you were able to exclude SA and MJ."

Open original post on X

2:55:46 PM ET | Status 2113343573466726454

Oh wow!

Who are SA and MK!?!?!?!?!?!?!

Open original post on X

2:55:57 PM ET | Status 2113343621294424444

@ameliarstern1 @MicheleMcPhee "Yes."

Open original post on X

2:56:25 PM ET | Status 2113343734901342706

@ameliarstern1 @MicheleMcPhee "Now, as to Mr. Pickard, how many zeroes are in a quadrillion?"

"A one with 15 zeroes after it."

Open original post on X

2:56:49 PM ET | Status 2113343836407603521

@ameliarstern1 @MicheleMcPhee "So, if it's a four contributor mixture, do you know who accounts for the missing fourth person?"

"No."

Open original post on X

2:57:27 PM ET | Status 2113343995283988789

@ameliarstern1 @MicheleMcPhee "Stain-E is also from the underpants of Ms. Birchmore?"

"Yes."

"Turning to the sperm fraction results, this was STR testing and you found a mixture of 3 contributors?"

"Yes."

"And this was via the process we talked about?"

"Yes."

Open original post on X

2:58:07 PM ET | Status 2113344162682835157

@ameliarstern1 @MicheleMcPhee "And in this one you created a StarMix likelyhood profile for Ms. Farwell?"

"Yes."

"And SA was excluded?"

"Yes."

Who is SA?!?!?!?!?!

Open original post on X

2:58:19 PM ET | Status 2113344215921119245

The mysterious SA comes up again!

Open original post on X

2:58:55 PM ET | Status 2113344365309673629

@ameliarstern1 @MicheleMcPhee "And the same result for MJ?"

"Not the same number, no, but support for exclusion of MJ."

Who is MJ!?!?!?!

Open original post on X

2:59:50 PM ET | Status 2113344596667154654

@ameliarstern1 @MicheleMcPhee "And limited support for exclusion of Mr. Pickard?"

"The LR from that is different. 5.4 non-million if it originated ands Jason Pickard and two unknown individuals than if it related to 3unknown unrelated invididual. That supports inclusion not exclusion."

Open original post on X

3:00:08 PM ET | Status 2113344671347036161

@ameliarstern1 @MicheleMcPhee "Who is the third contributor there?"

"I don't have any information about the third."

Open original post on X

3:01:01 PM ET | Status 2113344895289262207

@ameliarstern1 @MicheleMcPhee "The STR method, you found a mixture of four contributors on the next sample?"

"Yes."

"And Ms. Birchmore was one of them?"

"Yes."

"And SA was excluded?"

"And MJ and Mr. Pickard were also excluded?"

"Yes."

Open original post on X

3:03:12 PM ET | Status 2113345442205311403

"Do you have any evidence before you to state who the other two contributors are where we would have support for inclusion?"

"I can't see anything beyond the comparisons that were done here."

"You also found...you tested other evidence in the case but found the thresholds fell below your comfort level, is that correct?"

"Well, I didn't perform any testing from other items in the case....just the ones I was assigned."

"Were there profiles for those items as well?"

"For some of them."

Open original post on X

3:04:14 PM ET | Status 2113345703233957992

"Can we pull this up on the monitor your honor?"

"Yes."

"This is slide 1. Ms. Duvall is it not true that all paternally related males in a given family have the same y-STR profile?"

"Barring a mutation, yes."

"And a male profile is not restricted to a family per se, it could be an unrelated person?"

"If they are distantly related or if there is a mutation, it is possible."

Open original post on X

3:05:27 PM ET | Status 2113346011712152046

"if you detect DNA in a sperm fraction, you can't be sure that all of the DNA is from sperm, right?"

"Correct."

"Turning to slide 3. Ms. Duvall, while you rely on software, the analyst must still make some decisions, such as the number of contributors?"

"Yes. We also determine a rough estimate of mixture proportions. As far as the Y-STR interpretation, that is fully manual. None of that last part involves a software. We do the math ourselves."

Open original post on X

3:06:13 PM ET | Status 2113346202846527604

@ameliarstern1 @MicheleMcPhee "Ms. Duvall, is it not always possible to determine a major contributor from a minor contributor?"

"Correct."

"Some contributors can be unresolvable into major/minor?"

"When we're talking about that, we are only talking about male-specific profiles."

Open original post on X

3:07:16 PM ET | Status 2113346466701791639

"A major portion can still be DNA from only a few human cells, correct?"

"Yes."

"A major portion can be from DNA from only a few human cells, yes?"

"Yes. The starting or template amount can start from a small number of cells, but then it is amplified and the software is able to detect it."

"And that is via a copying process that can introduce artificats?"

"Yes, artifacts that we then remove."

Open original post on X

3:08:07 PM ET | Status 2113346680649310500

@ameliarstern1 @MicheleMcPhee "This slide says the likelihood that the known individual's DNA is included in the sample, but shouldn't it say the probability of the evidence before that sentence?"

"Yes."

"And that's the transposed conditional fallacy, right?"

"No."

Open original post on X

3:09:55 PM ET | Status 2113347135097696361

"Turning to slide 8, you see the range between 2-1,000?"

"Isn't it true that those ranges, 1-1000 and above 1000, are arbitrary?"

"They are not per se arbitrary., they are determined when we do use our software program."

"Does this range change when male relatives are present?"

"That, I don't actually know."

Open original post on X

3:11:03 PM ET | Status 2113347420352639223

"Let's turn to slide 13, please, I was on the wrong slide. In slide 13 we are assuming Ms. Birchmore's DNA is in the sperm fraction without proving whether that assumption is true, right?"

"Well, as I stated earlier, the item of evidence here was removed directly from Ms. Birchmore's body, so that is where the assumption starts. However, we have to actually confirm the profile is there to confirm that assumption."

Open original post on X

3:11:22 PM ET | Status 2113347500211871960

@ameliarstern1 @MicheleMcPhee "Does the assumption impact the ratios in the final results?"

"It can, but not to a great degree of significance."

Open original post on X

3:11:55 PM ET | Status 2113347638602981854

@ameliarstern1 @MicheleMcPhee "Slide 17 please. If Ms. Birchmore and Matthew Farwell are statistically showing support for inclusion, and Mr. Pickard is excluded, and it's a mixture of 4 people, who is the fourth person?"

"I do not know."

Open original post on X

3:13:32 PM ET | Status 2113348044108251555

"Here, in slide 18, if we have at least 4 male contributors, do we know who they are?"

"Can you please rephrase."

"There's at least 4 male contributors and we have an advantageous generation of a number for the major and minor profile. Do we know who any of the four male contributors are likely to be?"

"I think there's a difference between the Y-STR interpretation and regular STR profiles. The statistic for Y-STR profiles is given in the form of a likelihood ratio but it's not the same as the software so it doesn't have that advantageous range, so it doesn't apply to that statistic you asked about here."

"Gotcha! I understand."

Open original post on X

3:14:09 PM ET | Status 2113348200304410847

@ameliarstern1 @MicheleMcPhee "Were you provided a blood sample from William Farwell?"

"I was not."

"Were you informed that William Farwell had been in Sandra Birchmore's apartment and had relations with her?"

"I have no knowledge of any of that."

Open original post on X

3:14:45 PM ET | Status 2113348350909001967

@ameliarstern1 @MicheleMcPhee "And DNA does not tell you how a sample got on an item?"

"No."

"Or when it got there?"

"No."

"Thank you, ma'am, nothing further."

"Redirect."

Open original post on X

3:16:19 PM ET | Status 2113348744523456849

"Regarding William Farwell, you said STR testing can identify an individual DNA profile?"

"Yes."

"And fraternal twins have separate DNA profiles?"

"Yes."

"So what impact did William Farwell have on regarding the defendant being included as a contributor to stain J-2?"

"I don't know."

Open original post on X

3:17:21 PM ET | Status 2113349005556248578

"What is the results for Matthew Farwell here? J-2?"

"So, for Matthew Farwell, the sperm fraction, that is a mixture of four people, including male DNA. Sandra Birchmore was 1 of them. It is 16 quadrillion times more likely if it came from Sandra Birchmore, Matthew Farwell as opposed to Sandra Birchmore and three unknown individuals, so this supports inclusion for Matthew

Farwell."

Open original post on X

3:17:50 PM ET | Status 2113349124238033332

@ameliarstern1 @MicheleMcPhee "Can there be female DNA in a sperm fraction?"

"Yes."

"So these missing contributors to samples can be females?"

"I have no idea who those people are or their sex."

Open original post on X

3:18:42 PM ET | Status 2113349346230214701

"Did you test the ligature in this case?"

"No, that would be another person in the lab. The criminalist. I interpreted the data from the swaps."

"Was the ligature transported to the lab in a bag of clothes?"

"I have no knowledge regarding the transport of those items to the lab."

Open original post on X

3:19:26 PM ET | Status 2113349529659711544

@ameliarstern1 @MicheleMcPhee "Was a major contributor found on the ligature?"

"Yes, it was 158 million times more likely if the profile originated from Matthew Farwell than if it originated from a randomly selected individual."

Open original post on X

3:20:31 PM ET | Status 2113349800775041526

"You were explaining what assumption means in this context, what does that mean in your field?"

"Oh, like I said earlier, when it is a body cavity swap, or fingernails, or item of clothing removed, there is an expectation a person would be on it you can assume if it is supported by the presence of DNA in the sample itself. If there is any question about that sample being present, we have to do further testing."

Open original post on X

3:22:01 PM ET | Status 2113350180221178285

"What software do you use in your DNA testing?"

"When we're doing a regular STR profile, I mentioned we use software when the data comes off the instrument. That's when we look for artifacts during copying. Then we do a manual interpretation to determine how many people were in that profile. We have to provide that information manually in the software for it to do its modeling

of the mixture profile. There is a give and take of manual and computational components. But we have to tell the software how many people were in the sample for it to be able to tell us how many people are in it, and then, downstream, we have to confirm those results with our manual work."

Open original post on X

3:22:23 PM ET | Status 2113350271317524965

@ameliarstern1 @MicheleMcPhee "What is the difference between fraternal twins and normal siblings?"

"There is no difference."

"Nothing further."

"Recross."

Open original post on X

3:23:23 PM ET | Status 2113350521192898768

"Fraternal twin brothers share common alleles right?"

"Yes, but they only share approximately 50% because the two eggs that have been fertilized by two separate sperm cells are different so their DNA is approx. 50% different form each other already."

"50% is a lot though, isn't it?!"

"Objection."

"Sustained."

Open original post on X

3:23:54 PM ET | Status 2113350652160016411

@ameliarstern1 @MicheleMcPhee "Was the ligature wrapped up with clothing when it was transported to the lab?"

"I have no knowledge."

"Nothing further."

"You may step down."

Open original post on X

Sarah Odoms

3:25:05 PM ET | Status 2113350952480543083

@ameliarstern1 @MicheleMcPhee "The Government calls Sarah Odams!"

"How old are you?"

"29."

Open original post on X

3:25:33 PM ET | Status 2113351067635253760

@ameliarstern1 @MicheleMcPhee "Please pull up exhibit 1. This is in evidence. May I publish?"

"Yes."

"Ms. Odoms do you see something on your screen?"

"it's a picture of Sandra Birchmore."

Open original post on X

3:26:17 PM ET | Status 2113351253677756722

@ameliarstern1 @MicheleMcPhee "How did you first meet Sandra?"

"We went to elementary school together but we weren't close then. We connected later."

"When was that?"

"College aged. 18 or 19. 2016 or so."

"How did that happen?"

"We played Volleyball together at the Stoughton pickup league."

Open original post on X

3:27:43 PM ET | Status 2113351612601401588

"Were you working in 2019 and 2020?"

"Yes, I was working at Sharon Public Schools as a paraprofessional."

"Where did Sandra Birchmore work around 2020?"

"That is around the time I posted about a job opening in Sharon and she got a job in Sharon public schools."

"Was it the same school as you?"

"No, she was in the elementary school."

"What was her job title?"

"A paraprofessional."

"What is that?"

"An instructional aide who supports students in different ways. I worked in a class room, Sandra was a one on one."

Open original post on X

3:29:08 PM ET | Status 2113351968944963706

"When did Sandra start?"

"Around COVID. There were a lot of job openings."

"Around Fall of 2020?"

"Yes."

"Did you talk to Sandra outside of Volleyball?

"Sometimes. We would SnapChat, or she would call or text me sometimes."

"Did you and Sandra talk about who you were dating?"

"Yes, usually when we were between games. We would gossip."

"Did Sandra ever tell you anything about a man named Farwell?"

"Yes, she told me she was having a relationship with him."

Open original post on X

3:30:29 PM ET | Status 2113352308171890830

"What did she tell you at first about this person?"

"At first she didn't name him. She said a married police detective that she was having a relationship with. Then, when she told me she was pregnant, she named him as the father."

"I'll come back to that in just a moment. What did she tell you about how she and Matthew Farwell met?"

"She said they met while she was a young teen in police explorer's."

"What did Sandra tell you about Matthew Farwell's wife?"

"That the wife did not like Sandra."

Open original post on X

3:30:41 PM ET | Status 2113352358189031665

"She said they met while she was a young teen in police explorer's." "What did Sandra tell you about Matthew Farwell's wife?" "That the wife did not like Sandra."

=

Open original post on X

3:31:10 PM ET | Status 2113352481560518983

@ameliarstern1 @MicheleMcPhee "Sandra told me that was around before Matt Farwell's wife, she was around during his wife, and she'll be around after his wife."

WOW!

Open original post on X

3:31:21 PM ET | Status 2113352527588511779

"Sandra told me that was around before Matt Farwell's wife, she was around during his wife, and she'll be around after his wife."

Open original post on X

3:32:44 PM ET | Status 2113352874495476037

"Did Sandra talk to you about police explorer's?"

"Not often."

"Did Sandra ever talk to you about her mental health as an adult?"

"Yes."

"What did she tell you?"

"Just that she had general anxiety."

"Did you ever see her be severely depressed?"

"No."

"Did she ever tell you she had thoughts of self harm?"

"No."

"Did she ever talk to you about her medication?"

"I don't remember."

"Did you ever meet Matthew Farwell?"

"No."

Open original post on X

3:33:40 PM ET | Status 2113353109275554080

"What, if anything, did you and Sandra Birchmore talk about regarding photos of Matthew Farwell?"

"When I initially asked who is the father, she sent a picture."

"Okay, and how did she send that picture."

"She sent it over text. It was a cropped photo of him."

"Your honor may I put on the screen, exhibit 375/D-5."

"Yes just for the witness."

Open original post on X

3:35:27 PM ET | Status 2113353558460420453

"Do you recognize what's on your screen?"

"Yes, it is the text conversation with Sandra. It has the photo."

We see a picture of Farwell in a checkered shirt. He is the only person in the picture. it is a fall day. Someone stands to his left. It looks like he may have a badge on.

Open original post on X

3:36:50 PM ET | Status 2113353906340114904

"Where did Sandra meet Matthew Farwell?"

"Her apartment, she told me."

"Do you remember when you learned Sandra was pregnant?"

"I learned pretty close to the time she died."

"And did Sandra tell you who the father of her baby way."

"She told it was Matthew Farwell."

"Did Sandra talk to you about how she felt being pregnant?"

"Yes, she was very excited. She told me right away. She stopped my mom in the super market and they didn't really talk like that. She was telling everyone. She was very excited."

Open original post on X

3:39:34 PM ET | Status 2113354597045620921

"Did Sandra talk to you in jan 2021 about buying anything for her baby?"

"She had purchased a stroller, I think."

"Did Sandra talk to you about Matthew Farwell's involvement in the baby's life?"

"Yes, she wanted him involved and she saw a future now that she had that baby."

"Did Sandra tell you how Matthew Farwell felt about the pregnancy?"

"Yes, she told me she was going to tell him over dinner and that his reaction was not good. It became a fight. She said he was going to tell his wife. She took her phone out and then he grabbed her phone from her and was screaming in her face. She also said that he told her, 'I hope you die or I hope you kill yourself.'"

Open original post on X

3:40:15 PM ET | Status 2113354767682650196

@ameliarstern1 @MicheleMcPhee "What did she say about him providing financially for her child?"

"She expected it. There was a Florida trip coming up. She was unhappy about him traveling with her family. She made it clear she expected him to be very present in her child's life in those ways."

Open original post on X

3:40:53 PM ET | Status 2113354926063509595

@ameliarstern1 @MicheleMcPhee "Did you testify in this case in June of 2024?"

"Yes."

"Would it help you to refresh your recollection to look at that testimony?"

"Yes."

Open original post on X

3:41:56 PM ET | Status 2113355189314793953

Wow.

The Matthew Farwell federal grand jury, looking into Brian Tully and John Fanning's coverup of Sandra Birchmore's murder, was going on during the first Karen Read trial.

Wow.

Just wow.

The DOJ got 'em good. KP was not match for the DOJ, Tully and Fanning. Your minions are tired. Let them free."

Open original post on X

3:42:48 PM ET | Status 2113355408534376665

"What else did Sandra tell you?"

"Sandra told me she would take Matthew Farwell to court and request child support."

"What did Sandra say about raising the baby on her own?"

"She said she would."

"Did Sandra have any pets in 2021 and 2020?"

"She had two cats."

"What did Sandra tell you about her cats?"

"Those were her babies then. She loved those cats."

Open original post on X

3:42:59 PM ET | Status 2113355455955443965

"What else did Sandra tell you?"

"Sandra told me she would take Matthew Farwell to court and request child support."

"What did Sandra say about raising the baby on her own?"

"She said she would."

"Did Sandra have any pets in 2021 and 2020?"

"She had two cats."

"What did Sandra tell you about her cats?"

"Those were her babies then. She loved those cats."

Open original post on X

3:43:57 PM ET | Status 2113355700210462970

"Did you talk to Sandra Birchmore on Feb 1st, 2021?"

"Yes, she asked me on SnapChat if I thought we would have work next day because of the storm."

"Yes, a bit later, I responded. It was around 9:37PM."

"Do you know you responded?"

"It was on snapchat."

Wow, that was 3 minutes before Farwell moved Sandra's phone.

Open original post on X

3:45:11 PM ET | Status 2113356009280352741

"Did Sandra read your message at 9:37PM that day?"

"Objection."

"Sustained."

"Did Sandra respond?"

"No, she did not, and that was not typical. She would typically answer messages very quickly."

"At some point did you learn Sandra had died?"

"Yes, so that message was Monday and I learned of the news on Friday."

"At some point did you hear reports Sandra had died by self harm?"

"Objection."

"Overruled."

"Yes."

Open original post on X

3:47:34 PM ET | Status 2113356608247828659

"May I lead your honor?"

"Yes."

"When you heard those reports, did you say to your self I don't believe it?"

"Yes."

"Was one of the reasons you said that to yourself because Sandra was so excited to have her baby?"

"Objection."

"Sustained."

"What was your reaction as to her cats?"

"I was very surprised."

"Your honor if that's her reaction that's her reaction."

"Your honor she wasn't finished answering."

"She can finish."

"I right away did not think it was suicide."

Boom. Got her.

Open original post on X

3:49:21 PM ET | Status 2113357058271580607

"Did you reach out to any law enforcement?"

"Yes, I called the state police. There was a posting that said you could call the state police and give information you know."

"Did you call anyone else first?"

"The Canton Police because that's where her apartment is."

"Did you talk to someone from the state police?"

"Yes."

"And did you provide that person with information about Sandra?"

"Yes."

"Did the information you provided to state police related to Matthew Farwell?"

"Yes."

Open original post on X

3:50:12 PM ET | Status 2113357270742700068

Oh my Goodness.

Another one of Sandra Birchmore's friends reported Matthew Farwell, within days of Sandra's death, to the Canton Police and to Brian Tully and John Fanning's state police unit working for Norfolk DA Michael Morrissey.

You burn in hell, Tully, KP and Fanning.

Open original post on X

3:51:49 PM ET | Status 2113357676449239326

@ameliarstern1 @MicheleMcPhee Sidebah!

Open original post on X

3:53:12 PM ET | Status 2113358027323842693

@ameliarstern1 @MicheleMcPhee Recross.

"You spoke to MSP not long after Sandra passed?"

"Yes."

"And you said you had known Ms. Birchmore since childhood?"

"Yes."

"And this meeting was on Feb 12, 2021?"

"What was on Feb 12, 2021?"

"Your conversation with MSP."

"I recall calling them."

Open original post on X

3:54:32 PM ET | Status 2113358362410995931

"Do you recall telling MSP Sandra Birchmore had a reputation for dishonesty?"

"Yes, I meant she would tell different stories to different people."

"Is that all?"

"Yes."

"You told Trooper Dunne you were skeptical of her claim of pregnancy?"

"Not that if she was pregnant, no. I believe she was pregnant. I didn't believe she had twins."

"Did she tell you she was pregnant with twins?"

"At one point. I don't know how far along she was."

Open original post on X

3:55:07 PM ET | Status 2113358507487698950

NEW:

Sandra Birchmore was under the impression she was pregnant with twins before she was killed by Matthew Farwell on Feb 1, 2021 (a crime then covered up by Brian Tully and John Fanning's infamous Norfolk DA state police unit).

Open original post on X

3:56:20 PM ET | Status 2113358814267240889

"What was it like to have a conversation with Sandra?"

"She would text a lot. When she would call, it would sometimes be a long conversation, so I would not answer and call back when I had time."

"Did the Volleyball league stop during covid?"

"Yes, but we had reconnected before it shut down."

"When did she first tell you about her relationship?"

"Not by name, just the relationship with the married police officer but she had not named him yet."

"Did she tell you if he was constantly texting her?"

"I don't know."

Open original post on X

3:58:10 PM ET | Status 2113359274755657932

@ameliarstern1 @MicheleMcPhee "Why don't we pull up exhibit 375. Is this a photo of Matthew Farwell where she dropped out his family?"

"Yes."

"Did you ask her anything about that?"

"No."

Open original post on X

3:59:31 PM ET | Status 2113359616239440191

"You said of Mr. Farwell's wife, Ms. Birchmore said she was there before his wife, she was there during his wife and she'll be there after his wife."

"What did you take that to mean?"

"That the affair would leave longer than the marriage."

"Did she tell you she knew Matthew Farwell's wife?"

"She said she babysat for them."

"Did she say a few times?"

"I don't know how many times."

"Did you say Matthew Farwell's wife didn't like her?"

"Yes."

"When did she babysit for them?"

"I don't know."

Open original post on X

4:01:22 PM ET | Status 2113360083144806645

"Did she her dead grandmother came to her in a dream and tell her she would have twins?"

"Objection."

"Sustained."

"Why did she think she was having twins?"

"Her dead grandmother came to her in a dream."

"When was this?"

"Soon into the pregnancy."

"Did she tell you she needed Matthew Farwell to take care of her."

"No. She told me she wanted him to be involved but if he refused she would take him to court."

"Was there a discussion about a DNA test?"

"No."

"Was there any talk of going to court requiring a DNA test?"

"No, she mentioned child support, nothing about DNA."

"Did you tell Trooper Dunne that Sandra Birchmore had attachment issues?"

"Objection."

"Sustained."

Open original post on X

4:03:20 PM ET | Status 2113360575933907116

@ameliarstern1 @MicheleMcPhee "Do you recall telling Trooper Dunne that?"

"No."

"Would looking at his report help you?"

The witness looks at report.

"I don't remember saying that to him."

Open original post on X

4:03:36 PM ET | Status 2113360642744651963

Oh no, Matt Dunne.

What have you done to Brian Tully and John Fanning.

Open original post on X

4:04:32 PM ET | Status 2113360878896595140

@ameliarstern1 @MicheleMcPhee "You don't recall having that conversation with her?"

"No."

"Jurors, it's time to go..."

"Your honor, the government requests we continue due to witness obligations?"

"Jurors? I am seeing nodding."

Open original post on X

4:07:19 PM ET | Status 2113361579949363518

"Sandra got pregnant in December of 2020, yes?"

"Yes."

"When did you learn the name Matthew Farwell?

"December of 2020."

"Did you have any work day contact with Sandra while she was at the Sharon public schools?"

"Not really."

"Does that mean not at all?"

"She would ask if a storm was coming up, but we didn't really talk about work."

"How often did you see her in person at that point?"

"At Volleyball. Before everything got shutdown for COVID. That happened when the schools got shutdown. Spring of 2020."

"And, Sandra Birchmore did tell you about her depression and anxiety right?"

"She talked more about anxiety than depression."

"You said on direct you were surprised to learn she had committed self harm, but what did you know about her depression at the time of her death."

"I didn't know her to be depressed. That is why I was surprised."

"Did she tell you she was on antidepressants?"

"She told me was on Zoloft for anxiety."

Open original post on X

4:07:57 PM ET | Status 2113361737277952231

@ameliarstern1 @MicheleMcPhee "Did she tell you about her history of cutting?"

"No."

"What about self harm notes?"

"Objection."

"Sustained."

Open original post on X

4:08:52 PM ET | Status 2113361969797341437

@ameliarstern1 @MicheleMcPhee "Did she tell you she had at least one committed self harm?"

"No."

"Did you know she was in therapy two times per week?"

"No."

"Were you in contact when her mother or grandmother passed away?"

"No."

Open original post on X

4:09:31 PM ET | Status 2113362131588722810

@ameliarstern1 @MicheleMcPhee "Were you aware of any other relationships she had during the time..."

"Objection."

"Sustained on this for a number of different reasons. Counsel, move on."

Wow.

Open original post on X

4:11:04 PM ET | Status 2113362524603322584

"And Sandra said Matthew Farwell was the father because she hadn't had sex with anyone else?"

"That's what she said."

"She said Matthew Farwell told her to kill herself?"

"I don't remember the exact phrasing. He either said I hope you die or I hope you kill yourself."

"Did you have a falling out with Sandra two weeks before her death?"

"No."

"Were you, umm, did you have a friend in common, Julia Perlin?"

"Yes."

"And was there a falling out between them?"

"Objection."

"Sustained."

"You listened in on a phone call?

"Objection."

"Sustained as to scope."

Open original post on X

4:11:59 PM ET | Status 2113362754216284547

We now have the woman who listened in on the phone call bet7ween Sandra Birchmore and Julia Perlin on Jan 20, 2021!

11 days later, after Julia revealed Sandra's relationship to Matthew Faerwell to the Stoughton PD, Sandra was dead.

Open original post on X

4:13:10 PM ET | Status 2113363051898437843

"Were you less close to Sandra Birchmore after that phone call?"

"Yes."

"Did you tell the FBI you and Sandra had a falling out over that phone call?"

"I don't recall."

"What about the Disney trip? What did she say?"

"Sandra said she was worried about him going far away because she would need him to take her to the hospital."

"Was Sandra confidant that Matt Farwell would eventually choose him over his wife?"

"I think she hoped."

Open original post on X

4:14:20 PM ET | Status 2113363345445138734

"When was the last time you messages Ms. Birchmore?"

"When I responded to her texts in Feb."

"When was your last text before that?"

"I don't know."

"Did she ever ask to borrow money from you?"

"I don't know."

"Was she known to borrow money from others?"

"Objection."

"Sustained."

Open original post on X

4:16:18 PM ET | Status 2113363838158381197

"Can I have one moment, your honor?"

"You may."

"Nothing further."

"Redirect."

"One question; Ms. Odom, you were asked on cross about Sandra saying she was there before, during and after the wife, what did you understand Sandra to mean she was there before the wife?"

"Objection."

"Sustained as to this."

"You were asked about what Sandra meant by being there after the wife, what did she mean by being there before?"

"Objection."

"Sustained."

"Nothing further."

"Thanks to the jury for their patience."

Open original post on X

End-of-day scheduling and proceedings

4:16:40 PM ET | Status 2113363933407084924

@ameliarstern1 @MicheleMcPhee "Remember, tomorrow is a 9-1 day only! Have a good day!"

Open original post on X

4:16:54 PM ET | Status 2113363990130671841

@ameliarstern1 @MicheleMcPhee Jurors exit,

Open original post on X

4:19:04 PM ET | Status 2113364536107401413

"Everyone can be seated. Counsel, I have proceeding inj 15 minutes. What's the lineup?"

"LIndsey Creen, Ms. Birchmore's friend, and Dihail Alkalil."

"That should be all. Mr. Creen's direct is 45 minutes. And the doctor's will be over an hour."

"From the defense, does that sound right?"

"Yes, the cross of Ms. Creen will be 45 imnutes. The doctor will be over an hour on cross."

"Anything else counsel?"

"Thank you for the extra time, nothing else."

"One question, we are waiting the ruling on Dr. Loper..."

"When is that going to come up, the government hasn't pressed this yet. It's just about questions I have for Ms. Hyde."

"Ms. Hyde will be here Tuesday or Wednesday. We expect to rest Wednesday."

Open original post on X

4:19:59 PM ET | Status 2113364767603642790

BREAKING NEWS:

Jessica Hyde, from the Karen Read and John O'Keefe trial, will be testifying Tuesday or Wednesday next week. in the Sandra Birchmore and Matthew Farwell trial!

The DOJ will rest Wednesday!

Open original post on X

4:20:57 PM ET | Status 2113365011037040889

"Your honor, we have experts who were booked weeks ago, we were not expecting to start Thursday and Friday."

"Okay, I understand both sides have to work with moving parts. I'm just thinking about the jury's time."

"Counsel, what's a preview for Monday?"

"Dr. Capo-Martinez, William "Billy" Farwell, Dr. Smock and then Jessica Hyde."

Open original post on X

4:21:53 PM ET | Status 2113365246031380976

BREAKING NEWS:

William "Billy" Farwell will be taking the stand Monday or Tuesday of next week during the Sandra Birchmore and Matthew Farwell trial.

The government's case will end after Jessica Hyde testifies on Tuesday or Wednesday.

Wow!

John Fanning will be called by the defense and crossed by the DOJ.

Open original post on X

4:23:17 PM ET | Status 2113365597488844825

"First of all, I want both sides to confer about how much time examinations will take next week. Does the defense have a sense how many days you will need for your case."

"We do your honor. And I can't tell you how much of a problem with this. We moved this up from the second week to the first week of November. I'm sorry for being upset. We were ready. We have done our best. I just was not ready for next week."

"Counsel, everyone take a breath. Come to a physical sidebah and let's talk about this. Mr. Farwell please come up here."

Sidebah!

Open original post on X

4:25:59 PM ET | Status 2113366276425101801

@ameliarstern1 @MicheleMcPhee Sidebah remains ongoing. I refuse to abandon my post!

Open original post on X

4:28:00 PM ET | Status 2113366785064042559

@ameliarstern1 @MicheleMcPhee "Counsel, with that said, we have to stand in recess and I have to stay here. You all have to leave."

And we're done.

Open original post on X

Source & Editorial Notes

- Source: This reconstruction is based on contemporaneous posts authored by @GrantSmithEllis. Other users' posts are not used as factual courtroom narrative.
- Retrieval and preservation: Reporting was retrieved using multiple methods and cross-checked for gaps. Distinct posts are preserved even when their wording overlaps, and Grant's original wording, spelling, punctuation, @mentions, and apparent typographical errors are generally retained.
- Editorial organization: Posts are arranged chronologically by witness or proceeding. Headings and brief notes are added where needed to identify supported transitions; events are not reconstructed during periods for which no Grant-authored reporting was retrieved.
- Exhibits: Referenced trial exhibits are not independently reproduced or verified unless expressly included in the report.

Support the reporting

This archive is made possible by Grant Smith Ellis's excellent on-the-ground courtroom reporting and his permission to use that work in this project. If you've found the reporting useful and would like to support his work directly:

Venmo · PayPal

All donations go directly to Grant Smith Ellis; this archive is unaffiliated with and receives no proceeds from them.